

25NNCV08012 25NNCV08012

County: los-angeles

Division: Civil Law and Motion

Department: V

Hearing date: 2026-08-10

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Case Number: 25NNCV08012 Hearing Date: August 10, 2026 Dept: V

Superior Court of California

County of Los Angeles – NORTHEAST District

Department

V

MANUEL MICULAX,

Plaintiff,

vs.

DAVID M. CARBERRY; and DOES 1

through 30, inclusive,

Defendants.

Case

No.:

25NNCV08012

Hearing

Date:

August

10, 2026

Time:

8:30 a.m.

[Tentative]

Order RE: MOTION FOR LEAVE TO FILE FIRST AMENDED COMPLAINT

MOVING PARTY: Plaintiff Manuel Miculax

RESPONDING PARTY: None.

The Court

considered the moving papers filed in connection with the instant motion.

BACKGROUND

On November 12, 2025,
Plaintiff Manuel Miculax ("Plaintiff") filed this action against David M.
Carberry, Eugene McClendon, and Jodie McClendon (collectively, "Defendants"),
alleging causes of action for general negligence and premises liability. Plaintiff
alleges he was attacked by Defendants' pitbull while working as a gardener at
Defendants' home.

On July 17, 2026,
Plaintiff filed this motion for leave to file a first amended complaint.

No opposition was filed.

LEGAL STANDARD

"The court may, in furtherance of
justice, and on any terms as may be proper, allow a party to amend any pleading
or proceeding by adding or striking out the name of any party, or by correcting
a mistake in the name of a party, or a mistake in any other respect; and may,
upon like terms, enlarge the time for answer or demurrer. The court may
likewise, in its discretion, after notice to the adverse party, allow, upon any
terms as may be just, an amendment to any pleading or proceeding in other
particulars; and may upon like terms allow an answer to be made after the time
limited by this code." (Code Civ. Proc., § 473, subd. (a)(1).)

“Any judge, at any time before or after commencement of trial, in the furtherance of justice, and upon such terms as may be proper, may allow the amendment of any pleading or pretrial conference order.” (Code Civ. Proc., § 576.)

DISCUSSION

Plaintiff moves for an order granting him leave to file a first amended complaint to correct the address where the incident occurred and add Maria E. Torres, individually and as Trustee of the Maria E. Torres Living Trust, as the defendant who owned the property.

Preliminarily, the Court notes that Plaintiff's motion does not include a copy of the proposed first amended complaint. “A motion to amend a pleading before trial must: (1) include a copy of the proposed amendment or amended pleading...” (Cal. Rules of Court, rule 3.1324(a).) Counsel attests to attaching the proposed first amended complaint. (Ebrahimi Decl., ¶ 15.) However, a copy of the proposed amendment is not attached.

The Court continues the hearing on the instant motion and orders counsel to refile the declaration to include all referenced exhibits and comply with Rule of Court 3.1324.

CONCLUSION

Based on the foregoing, the Court CONTINUES Plaintiff Manuel Miculax's motion for leave to file first amended complaint to 09/02/2026 at 8:30 a.m. and orders Plaintiff to refile the declaration of counsel to include referenced attachments.

Moving party is ordered to give notice of this ruling.

IT IS SO ORDERED.

DATED: August 10, 2026

Sarah

J. Heidel

Judge

of the Superior Court